

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: June 25, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

ORDER FOLLOWING STATUS CONFERENCE

This matter was reassigned to the Undersigned on June 6, 2025. On June 11, 2025, I issued an order entitled: Order Requiring Supplemental Briefing Denying Motion to Stay, Granting In Part and Denying in Part Third Motion for Enlargement of Time, and Requiring Joint Status Report (the “June 11 Order”). Among other things, the June 11 Order required Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) to file a Supplemental Brief by June 26, 2025. The June 11 Order also required a joint status report by June 26, 2025.

On June 18, 2025, Respondents filed a Motion for Reconsideration and Motion for Enlargement of Time to File Supplemental Briefs (“Motion for Enlargement”).

On June 22, 2025, I issued an Order Setting Status Conference, which required the parties to appear at a status conference on June 25, 2025, and to be prepared to discuss service pursuant to the Hague Convention, possible waiver of formal service, the appropriate procedure to address whether OOCL’s Third Party Complaint states a plausible claim, the commencement of discovery, and any other matters that may affect this case moving forward.

I conducted the status conference on June 25, 2025, with counsel for SEA, OOCL and SEC present. At the status conference, I told the parties that I would issue an order following the status conference that would provide as follows:

It is **HEREBY ORDERED** that the parties are to file a joint status report as contemplated in the Initial Order by **June 26, 2025**. It is

FURTHER ORDERED that OOCL is to file a Supplemental Brief on the issue of whether the Third Party Complaint states a plausible claim no later than **June 26, 2025**. SEC may file a response Supplemental Brief no later than **July 14, 2025**.¹ OOCL may file a reply Supplemental Brief by **July 21, 2025**. It is

FURTHER ORDERED that the following motions will be decided after all of these motions are fully briefed: Third Party Respondent's Motion to Dismiss Respondents' Third Party Complaint; Respondents' Motion for Reconsideration; Respondents' Motion for Enlargement of Time to File Supplemental Briefs; Third-Party Respondent's Motion for an Order Preserving Defense; and Third-Party Complainants' Motion to Permit Alternative Service Under FED. R. CIV. P. 4(f)(3).

Richard C.
Ambrow Jr -S

Richard Ambrow
Administrative Law Judge

 Digitally signed by Richard C.
Ambrow Jr -S
Date: 2025.06.25 10:17:01 -07'00'

¹ SEC's counsel asked for 17 days to file the response during the status conference due to the upcoming Independence Day holiday. I erroneously stated the response would be due July 21, 2025, during the status conference.